

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kristen Lanham-Hostetter	Team: Team # 1	CCRB Case #: 201015281	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/26/2010 6:35 PM	Location of Incident: Walton Avenue & East 167th Street, in the Bronx; 44th Precinct stationhouse		18 Mo. SOL 4/26/2012		Precinct: 44
Date/Time CV Reported Mon, 11/01/2010 9:50 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 11/05/2010 4:00 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Michael Greaney	20646	947762	044 PCT
2. Officers			
3. LT Johnny Orellana	00000	920679	044 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Ronald Cruz	23999	946885	PBBX

Officer(s)	Allegation	Investigator Recommendation
A . POM Michael Greaney	Discourtesy: At Walton Avenue & East 167th Street, in the Bronx, PO Michael Greaney spoke obscenely and/or rudely to § 87(2)(b)	A . Unfounded
B . POM Michael Greaney	Force: At Walton Avenue & East 167th Street, in the Bronx, PO Michael Greaney used physical force against § 87(2)(b)	B . Unfounded
C . LT Johnny Orellana	Abuse: At Walton Avenue & East 167th Street, in the Bronx, LT Johnny Orellana supervised the seizure of § 87(2)(b)'s property.	C . Exonerated
D . Officers	Force: Inside the 44th Precinct stationhouse, officers used physical force against § 87(2)(b)	D . Alleged Victim Uncooperative

Case Summary

§ 87(2)(b) filed this complaint with the Internal Affairs Bureau on November 1, 2010. Her complaint was received at the CCRB on November 5, 2010, under log number 10-54716. On October 26, 2010, § 87(2)(b) parked her car at Walton Avenue and East 167th Street in the Bronx, where she saw her nephew § 87(2)(b) being arrested. § 87(2)(b) approached the officers, which led to the following allegations:

- **Allegation A – Discourtesy: At Walton Avenue & East 167th Street, PO Michael Greaney spoke obscenely and/or rudely to § 87(2)(b)**
- **Allegation B – Force: At Walton Avenue & East 167th Street, PO Michael Greaney used physical force against § 87(2)(b) - § 87(2)(g)**
§ 87(2)(b) it is recommended that **Allegations A and B be closed as unfounded.**
- **Allegation C – Abuse: At Walton Avenue & East 167th Street, LT Johnny Orellana supervised the seizure of § 87(2)(b) s property. § 87(2)(g)**
§ 87(2)(b), it is recommended that **Allegation C be closed as exonerated.**
- **Allegation D – Force: Inside the 44th Precinct stationhouse, officers used physical force against § 87(2)(b) § 87(2)(g)**
§ 87(2)(b), it is recommended that **Allegation D be closed as victim uncooperative.**

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) *is a § 87(2)(b) black female who stands § 87(2)(b), and has black hair and brown eyes. § 87(2)(b)*

CCRB Statement

§ 87(2)(b) provided a phone statement on November 9, 2010 (encl. 7a) and was interviewed at the CCRB on November 15, 2010 (encl. 7b-h). § 87(2)(g)
§ 87(2)(b). On October 26, 2010, at approximately 6:35pm, § 87(2)(b) parked her green Ford Explorer on Walton Avenue, near East 167th Street, in the Bronx. Her § 87(2)(b)-old daughter, § 87(2)(b) was sitting in the back passenger seat of the vehicle. Once § 87(2)(b) parked, her daughter said, “Mommy, the police are talking to § 87(2)(b) § 87(2)(b) § 87(2)(b) s nephew, was approximately forty to fifty feet away from her car, being held by three unidentified police officers (PO1, PO2, and PO3) in front of a convenience store at the corner of Walton Avenue and East 167th Street. § 87(2)(b) was only able to describe PO1, PO2, and PO3 as Hispanic males, standing between 5’7” and 5’8” tall and wearing uniforms.

Many people were walking outside, but despite the people walking by between her vehicle and § 87(2)(b) she could see PO1 holding § 87(2)(b) s wrists behind his back, and perhaps handcuffing him, and could see PO2 with his forearm against the back of § 87(2)(b) s head or neck. PO3 stood next to the other officers but did not appear to be making contact with § 87(2)(b). PO2 used his forearm to bang § 87(2)(b) s head against the wall he was facing, approximately six to seven times. Once § 87(2)(b) saw § 87(2)(b) s head bang against the wall,

she left her keys in the ignition, left her purse and her daughter in the car, and exited her vehicle, leaving the driver's door open.

§ 87(2)(b) approached PO1, PO2, and PO3, and asked them why they had banged § 87(2)(b)'s head against the wall. One of the officers said something about § 87(2)(b) being a "wise guy," but otherwise did not answer § 87(2)(b)'s questions. § 87(2)(b) asked what he was being arrested for. A crowd had also formed at this point, and several people that § 87(2)(b) did not know were also asking the officers why they banged § 87(2)(b)'s head against the wall. The officers did not respond, and § 87(2)(b) had barely gotten a look at them before approximately three to four blue and white patrol cars arrived, less than thirty seconds after § 87(2)(b) approached the officers and § 87(2)(b).

One of the officers who had just arrived, who was identified by investigation as PO Michael Greaney of the 44th Precinct, walked up to § 87(2)(b) and loudly told her, "Get the fuck back." PO Greaney was described as a white male with a heavyset build, standing approximately 6'2", with black hair, in his forties, in uniform. When § 87(2)(b) encountered PO Greaney indoors later in the incident, and thought that he was a different officer, she described him as a white male standing 6' tall, with light eyes, light brown hair, weighing approximately 170 pounds, in his late thirties, in uniform. § 87(2)(b) stepped back and started walking away. She did not have any interactions with the other officers who arrived and thought they were occupied trying to clear the area. In her phone statement, § 87(2)(b) stated that PO Greaney and another male officer walked towards her, and that the officer with PO Greaney told her to "shut the fuck up," and "mind her own business." In § 87(2)(b)'s phone statement, the other officer was the only one who used profanity towards her at that point. In her statement to the Internal Affairs Bureau, the only profanity § 87(2)(b) alleged was, "get the fuck away," which was uttered by multiple officers.

PO Greaney walked with § 87(2)(b) as she made her way back to her car, and she told him she was getting ready to leave. § 87(2)(b)'s daughter saw PO Greaney approaching the car and got out of the car before they arrived at the vehicle. PO Greaney continued to walk with § 87(2)(b) and said, "You just don't fucking listen, you fucking savage." § 87(2)(b) said, "Savage? Have I ever asked you for anything? I work for my living." § 87(2)(b) arrived at her car and put her right hand on the open car door. PO Greaney smacked her hand off the door, got in the car himself, and asked, "Whose car is this?" Before § 87(2)(b) had an opportunity to answer, he drove the car away. In her statement to IAB, § 87(2)(b) alleged that PO Greaney knocked her and § 87(2)(b) down before getting into the car.

§ 87(2)(b) and her daughter, § 87(2)(b) immediately walked five minutes to the 44th Precinct stationhouse because § 87(2)(b) assumed this was where PO Greaney took her car.

When § 87(2)(b) and § 87(2)(b) got to the stationhouse, § 87(2)(b) went up to the front desk, told the person at the desk, who turned out to be PO Greaney, that she was there to retrieve her car, and that the car was just taken by an officer and brought there. § 87(2)(b) had to wait to the side of the front desk. While § 87(2)(b) was there, she called § 87(2)(b)'s son, § 87(2)(b) § 87(2)(b) who came to the stationhouse and took § 87(2)(b).

While § 87(2)(b) was at the front desk, PO Greaney told her that her car had been unattended. She said to him, "It was unattended? It was parked in the parking spot! I could have been taking something from my car! Anything could have been going on!" In her phone statement, § 87(2)(b) stated that PO Greaney told her she was under arrest for § 87(2)(a) 160.50, and that PO Greaney told her to "keep her fucking mouth closed." In her CCRB statement, § 87(2)(b) stated that PO Greaney, whose nameplate she read at the stationhouse, whose name was on her arrest paperwork, and who she did not recognize from the beginning of the incident, asked her to step to the side, where he told her that she was under arrest for

§ 87(2)(a) 160.50. PO Greaney told her that the weapon was a small knife, which they found in her glove box. § 87(2)(b) stated to the CCRB that she had never seen the knife and did not know what PO Greaney was talking about.

The officers made § 87(2)(b) sit on the bench in the main room of the stationhouse, and never placed her in a holding cell. Eventually, § 87(2)(b) was taken to Bronx Central Booking, where she was released with a Desk Appearance Ticket. At some point, she learned that § 87(2)(b) was arrested for § 87(2)(a) 160.50, but she did not recall how she learned that information.

When she later got her car, the glove compartment was open and the contents of her purse and § 87(2)(b)'s backpack were strewn all over the vehicle.

Victim: § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male who stands § 87(2)(b), and has black hair and brown eyes.

§ 87(2)(b) provided a brief phone statement on January 4, 2011 (encl. 8a). On the date of the incident, § 87(2)(b) was arrested with “some lady,” whose name he believed was § 87(2)(b). In the holding cell of the 44th Precinct stationhouse, multiple officers beat him, causing him to receive multiple muscle contusions, for which he went to the hospital.

On November 9, 2010, a first please call letter was mailed to § 87(2)(b). On December 1, 2010, § 87(2)(b) provided a phone number for § 87(2)(b). The same day, the undersigned investigator called § 87(2)(b) whose phone was disconnected. On December 1, 2010, the investigator searched whitepages.com and received Lexis Nexis results, which confirmed that the address on file was linked with the phone number on record for § 87(2)(b). The same day, a final please call letter was mailed to § 87(2)(b). On December 2, 2010, the investigator verified that § 87(2)(b) was not incarcerated, via the Department of Corrections inmate finder. On January 4, 2011, the investigator called § 87(2)(b) who provided a phone statement and scheduled an appointment for January 10, 2011. On January 10, 2011, § 87(2)(b) missed his appointment. The same day, the investigator called § 87(2)(b) and left a voicemail asking him to call back to reschedule, and mailed a missed appointment letter to his residence. § 87(2)(b) never called back to reschedule an appointment. On July 11, 2011, the investigator verified again that § 87(2)(b) was not incarcerated, via the Department of Corrections inmate finder. To date, none of the letters sent to § 87(2)(b) have been returned by the USPS.

Civilians not Interviewed

§ 87(2)(g)

NYPD Statements:

Subject Officer: PO MICHAEL GREANEY

- § 87(2)(b) -old white male who stands § 87(2)(b), and has blond hair and blue eyes.
- On the date of the incident PO Greaney was assigned to sector patrol with PO Patrick Callahan and PO John Kim, in uniform. He was on duty from 5:30pm until 2:05am in marked patrol car number 4422.

Memo Book

PO Greaney's flysheet and memo book provided extensive detailed entries that were consistent with his CCRB statement (encl. 9a-c).

OLBS Complaint

§ 87(2)(a) 160.50

CCRB Statement

PO Greaney provided a statement at the CCRB on April 26, 2011 (encl. 9f-h). On October 26, 2010, at 6:30pm, PO Greaney responded to a call for backup at the corner of East 167th Street and Walton Avenue, in the Bronx. When he arrived, there were approximately two to three police officers whose identities PO Greaney did not remember. There was one male civilian, identified by investigation as § 87(2)(b) who was under arrest, and a crowd of about 20 civilians. PO Greaney could not tell if § 87(2)(b) was resisting being arrested, and did not see § 87(2)(b) get handcuffed, as there were too many people blocking his line of sight.

Of the civilians who were present, four to five were yelling and screaming in an effort to prevent § 87(2)(b)'s arrest. None of the crowd members said anything about force being used against § 87(2)(b). § 87(2)(b) was one of the people who was yelling, and PO Greaney remembered her yelling that "cops were arresting her nephew," that "cops were the biggest gang in the world," and that "cops should die every day." Almost as soon as he arrived, PO Greaney saw a green Ford Explorer parked approximately fifteen feet from the arrest, on the east side of § 87(2)(b) facing southbound. He saw that the driver's door of the car was wide open, and the interior lights were on. PO Greaney approached the vehicle and saw that the keys were in the ignition, a gravity knife sat on the front passenger seat of the vehicle, and no one was inside the car. PO Greaney did not remember any specifics about the appearance of the knife.

PO Greaney asked approximately ten people in the vicinity of the vehicle if the car belonged to them or if they knew whose car it was. § 87(2)(b) was one of the people he asked. Everyone, including § 87(2)(b) (who was standing approximately five feet from the car at that point, and who was still periodically yelling about her nephew being arrested), answered that it was not their car and they did not know who owned it.

PO Greaney then walked over to his supervisor, LT Johnny Orellana of the 44th Precinct, who had arrived at some point and was standing near where the arrest had taken place, twenty-five to thirty feet from the vehicle. PO Greaney told LT Orellana that there was a car with the door open, the keys in it, and a knife on the seat, and asked what he should do. LT Orellana told PO Greaney that if no one claimed it, he should take it back to the stationhouse to determine ownership. In his interview, PO Greaney explained that a car with the door open and the keys in it would be very easy to steal, and that the officers did not want that "headache."

PO Greaney walked back to the vehicle, and did not interact with any civilians, in any way, on the way. No one followed PO Greaney to the vehicle or said anything to him as he headed back to the car. He never slapped § 87(2)(b)'s hand or spoke to her on the way back to the car. PO Greaney never said or heard any officers say, "get the fuck back," or "you don't fucking listen, you fucking savage." PO Greaney then drove the car back to the 44th Precinct stationhouse, alone. His partners, who had been separated from him upon arrival, remained at the scene.

Upon arriving at the stationhouse, PO Greaney ran the vehicle's license plate, and determined that § 87(2)(b) was the owner. He then briefly searched the interior of the car for inventory and found § 87(2)(b)'s personal property, which included a pink cell phone, a black purse and other items that PO Greaney did not recall.

Approximately five minutes after PO Greaney arrived at the stationhouse, § 87(2)(b) arrived, along with her daughter. PO Greaney did not remember seeing her daughter at the scene.

Upon entering the stationhouse, § 87(2)(b) loudly stated, “you guys took my car.” PO Greaney immediately asked § 87(2)(b) for her ID, which she provided. PO Greaney then told § 87(2)(b) that they determined that the vehicle belonged to her, that there was a knife on the front seat, and that the knife was illegal. § 87(2)(b) did not reply, and PO Greaney handcuffed her. Once § 87(2)(b) was handcuffed, she was processed by PO Greaney, who fingerprinted her and let her make phone calls. After she was handcuffed, § 87(2)(b)'s demeanor became calm. § 87(2)(b) never said anything about the knife in her car and did not say anything about force being used against her nephew.

PO Greaney did not know what happened to § 87(2)(b)'s daughter after § 87(2)(b) was arrested. § 87(2)(b) arrived at 7:00pm, and the vehicle, as well as § 87(2)(b)'s possessions, were released to him. PO Greaney did not remember seeing § 87(2)(b)'s nephew, § 87(2)(b) inside the stationhouse, and never saw him closely enough to see visible injuries. Eventually, PO Greaney released § 87(2)(b) with a desk appearance ticket for possession of the gravity knife. When she went to court, § 87(2)(b) pleaded guilty to possession of the knife.

Subject Officer: LT JOHNNY ORELLANA

- § 87(2)(b) -old Hispanic male who stands § 87(2)(b) and has black hair and brown eyes.
- On the date of the incident was the platoon commander, from 2:45pm until 11:30pm. LT Orellana had an operator, but did not remember who it was. He was in uniform, in marked patrol car number 2341.

Memo Book

LT Orellana had no entries in his memo book regarding this incident (encl. 10a-b).

CCRB Statement

LT Orellana was interviewed at the CCRB on June 3, 2011 (encl. 10c-d). LT Orellana had no recollection of the incident and did not recognize a photo of § 87(2)(b). A photo of § 87(2)(b) looked somewhat familiar to LT Orellana, but he did not remember where he had seen him.

During his CCRB interview, LT Orellana explained that if a vehicle is left unattended, unlocked, and open, according to police procedure, the car can be seized, and the police department can have it towed. If there is a weapon in plain view in such a vehicle, whoever owns the vehicle would be arrested. If there are several people inside the car, all of the people would be arrested. If there is a weapon inside, but no owner, the car would be taken to the stationhouse, where it would be searched for inventory purposes.

Officers Not Interviewed

§ 87(2)(g)

NYPD Documents

OLBS

§ 87(2)(a) 160.50

Arrest Photo

§ 87(2)(b) s appearance is normal (encl. 11a).

SPRINT

The SPRINT Print-out documents that unit 44PP39 had a crime arrest at the location at 6:20pm. At 6:26pm, 44PP38, who was also on scene, requested additional units. Units LT1, 44H, and 44A responded. At 7:13pm, LT1 verified that the arrest took place at 6:34pm, and went back on patrol. At 7:20pm, 44PP39 verified the arrest took place at 6:30pm (encl. 11g-j).

Command Log

§ 87(2)(b) and § 87(2)(b) were both signed into the 44th Precinct command log at 6:40pm, and both of their appearances were “apparently normal.” § 87(2)(b) s charges are listed as § 87(2)(a) 160.50. § 87(2)(b) s charge was listed as § 87(2)(a) 160.50 (encl. 11k).

Roll Call

The 44th Precinct roll call confirms the assignments of the officers interviewed (encl. 11l-z).

Arrest for Incident and Disposition

- § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York as of May 9, 2011, with regard to the incident (encl. 16e).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 4a). § 87(2)(b) was named as a victim in case number § 87(2)(b)

Subject Officers CCRB History

- PO Michael Greaney has been a member of the service for two years and there are no substantiated CCRB allegations against him (encl. 2a-b).
- LT Johnny Orellana has been a member of the service for thirteen years and there are no substantiated CCRB allegations against him. (encl. 3a).

Conclusion

Identification of Subject Officers

- § 87(2)(b) obtained PO Greaney's name when she read it from his nameplate inside the 44th Precinct stationhouse. § 87(2)(g)

Allegations not Pleaded

- § 87(2)(g)

Investigative Findings and Recommendations

Allegation A – Discourtesy: At Walton Avenue & East 167th Street, in the Bronx, PO

Michael Greaney spoke obscenely and/or rudely to § 87(2)(b)

Allegation B – Force: At Walton Avenue & East 167th Street, in the Bronx, PO Michael

Greaney used physical force against § 87(2)(b)

In her statement to the Internal Affairs Bureau, § 87(2)(b) alleged that multiple officers told her to “get the fuck away.” In her phone statement, § 87(2)(b) alleged that an officer with PO Greaney, not PO Greaney himself, told her to “shut the fuck up.” In her CCRB statement, § 87(2)(b) alleged that PO Greaney, who was the only officer near her at the time, told her, “You just don’t fucking listen, you fucking savage.” § 87(2)(b) then placed her hand on the door of her vehicle, and PO Greaney slapped her hand away before getting in her car and driving away. In her IAB statement, § 87(2)(b) stated that PO Greaney knocked her and § 87(2)(b) down before getting in her car. In her CCRB statement, § 87(2)(b) made no allegations regarding the use of discourteous language inside the 44th Precinct stationhouse. However, in her phone statement, § 87(2)(b) alleged that PO Greaney said to “keep her fucking mouth closed,” inside the stationhouse.

PO Greaney testified that his verbal contact with civilians at the scene only involved asking who owned the vehicle, and he stated that he did not have any contact with civilians immediately prior to taking the car to the stationhouse. PO Greaney denied using profanity towards § 87(2)(b) or touching her in any way at the scene.

§ 87(2)(g)

§ 87(2)(g), it is recommended that **Allegations A and B** be closed as unfounded.

Allegation C – Abuse: At Walton Avenue & East 167th Street, LT Johnny Orellana supervised the seizure of § 87(2)(b)'s property.

§ 87(2)(b) testified that when she went to protest § 87(2)(b)'s arrest, she left the keys to her car in the ignition, left her purse in the car, and left the car door open. § 87(2)(b) stated that there was no knife in her car. While she did not verbally respond to PO Greaney's question about whose vehicle it was, she did reach toward the vehicle and in that way made a claim to it.

PO Greaney § 87(2)(g) observed § 87(2)(b)'s vehicle with the door open, interior lights on, and keys in the ignition. However, PO Greaney also stated that he observed a gravity knife on the front passenger seat of the car. PO Greaney testified that he asked the nearby civilians, including § 87(2)(b) who the car belonged to. After no one took responsibility for ownership, and after consulting with LT Orellana, PO Greaney removed the vehicle to the 44th Precinct stationhouse.

LT Orellana did not remember the incident, and therefore was not able to provide his version of events. However, he did state that police procedure would stipulate that the owner of a vehicle with a weapon in plain view would be arrested. An unattended vehicle with a weapon in plain view would be removed to the stationhouse, if no one claimed ownership.

§ 87(2)(g)

§ 87(2)(g) Patrol Guide Procedure section 207-17 notes that when a police officer comes into possession of a contraband weapon, the officer must follow regular arrest procedure (encl. 1c-d). Patrol Guide Procedure section 218-26 explains that found property must be reported to a patrol supervisor and invoiced at a police command (encl. 1e-f). § 87(2)(g)

§ 87(2)(g) Therefore, it is recommended that **Allegation C** be closed as exonerated.

Allegation D – Force: Inside the 44th Precinct stationhouse, officers used physical force against § 87(2)(b)

§ 87(2)(g), it is recommended that **allegation D** be closed as victim uncooperative.

Team: 1

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date